

Amendment No. 3 to SB2053

Yager
Signature of Sponsor

AMEND Senate Bill No. 2053

House Bill No. 1827*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding the following as a new part:

7-51-2801. Part definitions.

As used in this part:

(1) "Digital asset mining facility" means a group of computers working at a single site that consume more than one megawatt (1 MW) of energy on an average annual basis for the purpose of securing a blockchain protocol and generating controllable electronic records; and

(2) "Quarry":

(A) Means a site that hosts the extraction, removal, and mechanized processing of limestone for barter or sale, and that:

(i) Is proposed to be established on real property consisting of less than two hundred fifty (250) contiguous acres; or

(ii) Is proposed to be sited where the boundary of active mining or extraction activities are less than five hundred feet (500') from an existing residential dwelling; and

(B) Does not include the excavation or removal of material that is incidental to the construction of a subterranean tunnel or system of subterranean tunnels designed primarily for the transportation of passengers and goods using electric, autonomous, or low-emission

vehicles, or other emerging technology for vehicles and transportation systems, where the tunnels are constructed at depths sufficient to avoid interference with surface uses.

7-51-2802. Local approval of quarry or digital asset mining facilities.

(a) Prior to a quarry or digital asset mining facility being established in a county, municipality, or metropolitan government, the local legislative body for the jurisdiction must approve the location for such facility by resolution in a public meeting.

(b) A local legislative body shall provide at least twenty-one (21) calendar days' notice of the time and place of any meeting called pursuant to subsection (a) by:

- (1) Publishing the notice in a newspaper of general circulation in the county;
- (2) Posting the notice on the local legislative body's official website;
- (3) Posting the notice in at least three (3) places at the location where the proposed quarry or digital asset mining facility will be established; and
- (4) Sending the notice by first-class mail to each resident whose property is within one thousand five hundred feet (1,500') of the property line of the proposed location.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and, except as expressly stated in this act, applies to any proposed quarry or digital asset mining facility that will be established on or after that date.